

intentional and willful, and was undertaken with oppression, fraud, and/or malice, entitling Plaintiffs to an award of punitive damages”. (FAC ¶49.)

Defendant argues that the intent necessary to prove a trespass does not always rise to the level necessary for punitive damages and that here the allegations are insufficient. Plaintiffs argue that they have sufficiently alleged facts showing punitive damages.

Punitive damages may be awarded in some trespass claims. (*Haun v. Hyman* (1963) 223 Cal.App.2d 615, 620 (punitive damages allowed when a “trespass is committed from wanton or malicious motives, or a reckless disregard of the rights of others”).) Since 1987, however, a party must not only show “reckless disregard of the rights of others”, but “despicable conduct” in order to show malice. (See, *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [The requirement of showing despicable conduct was added in 1987, and was intended to serve as a substantial, independent limitation on the right to recover punitive damages].)

That being said, not all trespass claims include the intent necessary to award punitive damages. “The only intent required to commit a trespass is an intent to enter the land regardless of motivation; a trespass may be committed by an act that can be intentional, reckless or negligent.” (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 10, fn. 7.)

Thus, the question here is whether the facts alleged show fraud, oppression or malice. (Civil Code section 3294.) There is no showing of fraud. Malice requires “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code section 3294(c)(1).) Oppression requires “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” Despicable conduct has been described as conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Internal quotation marks omitted.]” (*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159.)

Here, it is alleged that Defendant, Plaintiffs’ immediate neighbor, used a portion of Plaintiffs’ property to access her own property. It is also alleged that Defendant continued to use Plaintiffs’ property after Plaintiffs installed a wall to block access to the path. The allegations here are sufficient to state a claim for trespass, but they do not show despicable conduct. Therefore, the motion to strike punitive damages. As this is the first time these issues have been considered by the Court, Plaintiffs are given leave to amend.

11. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF OAKLEY
FILED BY:
TENTATIVE RULING:

The Defendant City of Oakley was dismissed on August 5, 2026. If this motion is withdrawn or moot, counsel shall provide notice to the Court.

12. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT SHEA HOMES LIMITED PARTNERSHIP
FILED BY: SHEA HOMES LIMITED PARTNERSHIP
TENTATIVE RULING:

The Court continues the hearing on this motion to September 9, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY CROSS-DEFENDANT OAKLEY UNION ELEMENTARY
SCHOOL DISTRICT
FILED BY:
TENTATIVE RULING:

Judgment in favor of Cross-Defendant Oakley Union was entered on 8/5. If this motion is withdrawn or moot, counsel shall provide notice to the Court.

14. 9:00 AM CASE NUMBER: C24-02009
CASE NAME: DANIEL RUBIO VS. RH OAK, INC.
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: RH OAK, INC.
TENTATIVE RULING:

Before the Court is Defendant RH Oak, Inc.'s Motion to Enforce Settlement Agreement and for Award of Attorney Fees, Costs and Sanctions ("Motion").

General Procedural Background

Plaintiff filed his original Class Action Complaint on July 30, 2024, alleging nine employment related causes of action. The First Amended Class Action Complaint was filed on December 9, 2024, which added a PAGA claim.

On March 11, 2025, Plaintiff Daniel Rubio executed a Mutual Release and Settlement Agreement ("Settlement Agreement") with Defendant RH Oak, Inc. The Settlement Agreement calls for a payment to Plaintiff (discussed below) in return for Plaintiff filing a Request for Dismissal of the Complaint within 2 business days of the full execution of the Settlement Agreement – *i.e.* by March 15, 2026.

Defendant notes that Plaintiff has not dismissed the Complaint as required by the Agreement. Instead, a motion for leave to amend was filed on his behalf on January 14, 2026. Given the failure of Plaintiff to abide by the terms of the Agreement, Defendant now moves to enforce the Agreement.